

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension By:**

CARMEN CAMACHO, Moving Party

vs.

TEMECULA VALLEY UNIFIED SCHOOL DISTRICT

OAH No. 2025030200

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Administrative Law Judge Coren D. Wong, Office of Administrative Hearings, State of California, heard this matter by videoconference on March 21, 2025, from Sacramento, California. Laurie Kamerrer of the law firm Adams Silva & McNally LLP represented Temecula Valley Unified School District (District). Fern M. Steiner of Fern Steiner Law, APC, represented moving party Carmen Camacho, who was present.

Procedural Background

Ms. Camacho is a permanent certificated employee of the District. E. Joe Mueller, the District's Executive Director (Certificated), Human Resources Development, signed and filed with the District's governing board a verified Notice of Intent to

Immediately Suspend Without Pay; Notice of Recommendation for Dismissal; and Statement of Charges (Notice of Intent). The Notice of Intent alleges cause to dismiss Ms. Camacho from the District for immoral conduct, unprofessional conduct, dishonesty, and persistent violation of or refusal to obey laws or reasonable regulations governing public schools. It further alleges cause to immediately suspend her without pay for immoral conduct and willful refusal to perform regular assignments without reasonable cause.

On January 28, 2025, the District's governing board approved the Notice of Intent and suspended Ms. Camacho without pay effective February 4, 2025. Ms. Camacho was given notice of the governing board's actions and her right to appeal her suspension and dismissal. She timely appealed her dismissal.

Ms. Camacho also timely filed a Motion for Immediate Reversal of Suspension (MIRS). She argues: (1) the Notice of Intent's allegations establish, at most, unprofessional conduct, unsatisfactory performance, and/or evident unfitness for service, none of which is a basis for immediate suspension; (2) published appellate decisions sustaining allegations of immoral conduct fall within one of three categories – sexual harassment or public sexual activities, drug use or possession, or theft – and the Notice of Intent alleges no such conduct; (3) "Respondent's regular assignment was teaching her class which she was doing"; (4) the Notice of Intent alleges only a refusal to perform which is insufficient for immediate suspension; (5) *Crawford v. Commission on Professional Competence of the Jurupa Unified School District* (2020) 53 Cal.App.5th 327 (*Crawford*), is factually distinguishable based on the degree of public notoriety and underlying misconduct involved; and (6) several of the Notice of Intent's allegations are the subject of a settlement agreement between the parties and

“should not form the basis for the suspension without pay” because the District agreed not to pursue them at hearing.

The District opposes the MIRS. It argues the Notice of Intent sufficiently alleges Ms. Camacho’s immoral conduct based on her: (1) disclosure of confidential student information; (2) treatment of students; (3) treatment of parents; (4) treatment of colleagues; and (5) dishonesty. The District also argues the Notice of Intent sufficiently alleges Ms. Camacho’s willful refusal to perform regular assignments without reasonable cause based on her refusal to observe confidentiality requirements and follow the applicable procedures for Individualized Education Plans (IEP).

The parties presented oral argument.

Applicable Law

DISMISSAL OF PERMANENT CERTIFICATED EMPLOYEE

The governing board of a school district may dismiss a permanent certificated employee for immoral conduct, unprofessional conduct, dishonesty, or persistent violation of rules. (Ed. Code, § 44932, subd. (a)(1), (2), (4), & (8).) Dismissal proceedings are initiated by filing verified, written charges alleging the existence of cause for dismissal with the governing board. (Ed. Code, § 44934, subd. (b).) If the governing board approves the written charges, notice is given to the employee that she will be dismissed in 30 days, unless she requests a hearing challenging her dismissal. (*Id.*, at subd. (b).) When the approved charges include allegations of immoral conduct or willful refusal to perform regular assignments without reasonable cause, the notice may include an immediate suspension without pay. (Ed. Code, § 44939, subd. (b).)

MIRS

An employee who has been immediately suspended may file a MIRS. (Ed. Code, § 44939, subd. (c)(1).) "Review of a motion filed pursuant to this section shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (*Ibid.*) In other words, the standard for deciding the motion is the same as that for deciding a demurrer in a civil action, and a motion may be granted if the statement of charges fails, as a matter of law, to allege grounds for immediate suspension. (*Sheehan v. The San Francisco 49ers, LTD.* (2009) 45 Cal.4th 992, 998 ["Moreover, we may affirm the sustaining of a demurrer only if the complaint fails to state a cause of action under any possible legal theory"].)

Only the legal sufficiency of the pleading is tested on demurrer, and the truth of the allegations is irrelevant. (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034.) Potential problems with proof are irrelevant. (*Com. on Children's Television, Inc. v. General Foods Corporation* (1983) 35 Cal.3d 197, 213-214, superseded by statute on different grounds as stated in *Branick v. Downey Savings and Loan Assn.* (2006) 39 Cal.4th 235, 242.) "The reviewing court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded." (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967-968.)

To survive demurrer, "the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) The complaint must allege "the essential facts of the plaintiff's case with reasonable precision and with particularity sufficient to acquaint the defendant

with the nature, source, and extent of the plaintiff's claim." (*Prue v. Brady Company/San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376.)

Although a demurrer does not admit the truth of contentions, deductions, or conclusions of fact or law alleged in the complaint, the distinction between such improper allegations and proper allegations of ultimate facts is not always clear and is at most one of degree. (*Perkins v. Super. Ct.* (1981) 117 Cal.App.3d 1, 6.) In *Burks v. Poppy Construction Co.* (1962) 57 Cal.2d 463, the California Supreme Court concluded that the allegation "publicly assisted," while a legal conclusion, was sufficient to survive demurrer. (*Id.* at pp. 473-474.) "What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. [Citations.] The stricken language must be read not in isolation, but in the context of the facts alleged in the rest of petitioner's complaint." (*Perkins v. Super. Ct. a, supra*, 117 Cal.App.3d at p. 6 [concluding the trial court erred in striking the allegations "wrongfully and intentionally," "retaliation," and "oppression, fraud, and malice" as legal conclusions].)

IMMORAL CONDUCT

In describing what constitutes "immoral conduct" within the context of the Education Code, the court in *Board of Education of San Francisco Unified School District v. Weiland* (1960) 179 Cal.App.2d 808, said:

In *Orloff v. Los Angeles Turf Club*, 36 Cal.2d 734, at page 740 [227 P.2d 449], the Supreme Court quotes with approval the following statement from Words and Phrases, permanent edition, volume 20, pages 159-160: "The term 'immoral' has been defined generally as that which is hostile

to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare."

(*Bd. Of Education of San Francisco Unified School Dist. v. Weiland, supra*, 179 Cal.App.2d at p. 811.)

The court in *San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, said that the meaning of immoral conduct "must be considered in conjunction with the unique position of public school teachers, upon whom are imposed 'responsibilities and limitations on freedom of action which do not exist in regard to other callings.' [Citation.]" (*Id.* at p. 1466.) The role teachers play in students' lives must be considered:

[T]he teacher is entrusted with the custody of children and their high preparation for useful life. [Her] habits, [her] speech, [her] good name, [her] cleanliness, the wisdom and propriety of [her] unofficial utterances, [her] associations, all are involved. [Her] ability to inspire children and to govern them, [her] power as a teacher, and the character for which [she] stands are matters of major concern in a teacher's selection and retention.

(*Goldsmith v. Bd. of Education of Sacramento City High School Dist.* (1924) 66 Cal.App.3d 157, 168.)

WILLFUL REFUSAL

The term "willful" implies "that the person knows what [she] is doing and intends to do what [she] is doing." (*Coomes v. State Personnel Bd.* (1963) 215 Cal.App.2d 770, 775.) It "requires only that the prohibited act occur intentionally." (*In re Jerry R.* (1994) 29 Cal.App.4th 1432, 1438.) Willful

does not necessarily imply any evil intent on the part of the servant or malice toward his master. In civil cases, the word "willful," as ordinarily used in courts of law, does not necessarily imply anything blamable, or any malice or wrong toward the other party, or perverseness or moral delinquency, but merely that the thing done or omitted to be done was done or omitted intentionally. It amounts to nothing more than this: That the person knows what [she] is doing, intends to do what [she] is doing, and is a free agent.

(*May v. N.Y. Motion Picture Corporation* (1920) 45 Cal.App. 396, 404.)

Analysis

The gravamen of this action arises from Ms. Camacho's conduct while employed as a second and fifth grade teacher during the 2023/2024 and 2024/2025 school years. The first several paragraphs of the Notice of Intent allege several expectations Ms. Camacho was required to meet as a classroom teacher, including: (1) "provide a flexible program and environment favorable to learning and personal growth in

accordance with each student's ability"; (2) "provide individual and group instruction designed to meet individual needs and motivate students"; (3) "communicate with parents through a variety of means and hold parent conferences to discuss individual students' progress"; and (4) "identify student needs and cooperate with other professional staff members in assessing and helping students solve learning problems."

The Notice of Intent cites a board policy prohibiting District employees from:

- a. Engaging in conduct that endangers students;
- b. Using profane or abusive language against staff;
- c. Willfully disrupting district or school operations;
- d. Dishonesty with staff; and
- e. Divulging confidential information about students to persons not authorized to receive the information.

THE NOTICE OF INTENT ALLEGES IMMORAL CONDUCT

Disclosure of Confidential Student Information

The Notice of Intent alleges students' constitutional right "to attend campuses that are safe, secure, and peaceful." It references federal and state law, several board policies, and a District administrative regulation regarding student privacy. It alleges the District's expectation that teachers "exercise good judgment and adhere to the District's Code of Ethics of the Education Profession." Teachers must "maintain the highest ethical standards, exhibit professional behavior, follow district policies, abide

by state and federal laws, and exercise good judgment when interacting with students and other members of the school community.”

The Notice of Intent alleges Ms. Camacho violated students’ constitution right, federal and state law, board policies, and an administrative regulation by disclosing confidential information about students’ behaviors and academic performance in emails addressed to a parent of a classmate of those students. It further alleges her disclosures demonstrated poor judgment and were contrary to the District’s Code of Ethics of the Education Profession.

Treatment of Students

The Notice of Intent cites numerous board policies and an administrative regulation requiring a positive school environment and civil behavior by and between all. One such policy provides: “The school environment should be characterized by positive interpersonal relationships among students and between students and staff.” Additionally: “All staff are expected to serve as role models for students by demonstrating positive, professional attitudes[,] and respect for each student and other staff members.”

Another policy documents the board’s belief “that each person should be treated with dignity and respect in their interactions within the school community.” It prohibits “students, staff, parents/guardians, and community members” from communicating or behaving in a manner that disrupts; hinders the District’s operations, provision of education, or other activity; or creates an unsafe environment. An administrative regulation “promotes mutual respect, civility, and orderly conduct among District employees, parents, and the public.”

Ms. Camacho's treatment of students violated the board policies and District regulation. A second-grade student ran out of Ms. Camacho's classroom, and she locked the door to prevent the student from returning. The student returned and began crying and pounding on the door, which Ms. Camacho ignored and instructed her students to do the same.

On other occasions, Ms. Camacho scared one of her students to such a degree that the student fled the classroom. Another student cried after Ms. Camacho yelled at him. He became so fearful and anxious over being in her classroom that his parents removed him. Ms. Camacho compared her students to other classes and dogs in a derogatory and demeaning manner. She insulted students, caused anxiety, ignored and dismissed them, and refused to help them when they asked.

Ms. Camacho's cruel treatment of her students led to numerous parent complaints and requests that their children be reassigned to another classroom. During the first two months of the 2024/2025 school year, parents of four different students complained about Ms. Camacho's treatment of their children and/or requested that their children be assigned to a different teacher. Additionally, "approximately, eight to ten adults and six students picketed [Ms. Camacho's] return to the classroom on the sidewalk in front of the school during student arrival for approximately 45–50 minutes." They carried signs "calling for [Ms. Camacho's] removal from the classroom."

Four days later, a parent read a letter during the public comment portion of the board's meeting. "The parent stated that [Ms. Camacho has] denied students their breaks; refused to allow them to use the restrooms; screamed, yelled and placed 'IEP kids' in the hallways for hours and without supervision; verbally attacked students and

called them names; and compared students to dogs." The parent's child stood next to him holding a sign describing what Ms. Camacho had done.

Treatment of Parents

The Notice of Intent alleges Ms. Camacho's improper treatment of parents. A student's parents forwarded a text message Ms. Camacho had sent them to Ms. Camacho's principal. "They advised Ms. Blackburn that [Ms. Camacho's] messages were scaring their family." In one message, Ms. Camacho threatened "to have [one of the parents] banned from volunteering in any second-grade classroom." In another, she "threatened to 'use [your] freedom of speech to post [their] nasty letter name included.'"

Treatment of Colleagues

The Notice of Intent alleges Ms. Camacho's improper treatment of colleagues. For example, she reported being sick in the District's online attendance program one day. Later that day, she went to her school site to conduct academic testing for a student. When her principal learned she was on campus, her principal called and told her to leave. Ms. Camacho responded, "'this is Bullshit'" and hung up.

Ms. Camacho repeatedly told a parent school administration did not support her and "intentionally assigned students with behavior issues to her." When Ms. Camacho was confronted about not completing forms necessary for a student's IEP, she tried to place the blame on another colleague by "dishonestly claiming that she had not received the forms." Ms. Camacho's conduct interfered with what should be a collaborative environment.

Dishonesty

Finally, the Notice of Intent alleges Ms. Camacho's repeated acts of dishonesty. When discussing her misconduct with District officials, she repeatedly denied disclosing confidential student information to parents of other students despite compelling evidence to the contrary. Ms. Camacho blamed a school psychologist for not providing the necessary forms prior to an IEP meeting even though the psychologist had done so twice. During a meeting with District administrators, she repeatedly denied making disparaging comments to students despite evidence establishing otherwise.

Ms. Camacho's contention that the Notice of Intent alleges, at most, unprofessional conduct, unsatisfactory performance, or evident unfitness for service exceeds the scope of the demurrer. "As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be." (*Del E. Web Corporation v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

Ms. Camacho's argument that several of the allegations are the subject of a settlement agreement between the parties is tantamount to an affirmative defense. Although an affirmative defense may be raised by demurrer, the operative pleading must clearly allege the elements of the applicable defense. (Cf. *Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152–1157 [trial court erred in overruling demurrer to cause of action for strict liability because allegations gave rise to an affirmative defense as a matter of law].) Ms. Camacho fails to cite any such allegations in the Notice of Intent.

Ms. Camacho's attempt to distinguish *Crawford* on the grounds the misconduct was more egregious and created greater notoriety than hers misses the point of the opinion. The appellate court did not specify the level of egregiousness or amount of notoriety required to constitute immoral conduct. Rather, it identified the misconduct's adverse effect on students or teachers as one of the factors considered in determining whether the specified conduct constitutes immoral conduct. (*Id.*, at pp. 339–341.) Indeed, the appellate court expressly rejected the argument “there are three fixed categories of conduct that constitute ‘immoral conduct’ as a matter of law.” (*Id.*, at p. 337.) Ms. Camacho's similar argument is rejected.

THE NOTICE OF INTENT ALLEGES WILLFUL REFUSAL

Disclosure of Confidential Information

As previously discussed, Ms. Camacho repeatedly disclosed confidential student information in emails sent to a parent not entitled to the information. The disclosures occurred in four separate emails sent over the course of three days. The allegation she “repeatedly dishonestly denied that [she] sent such emails to the parent and insisted they were emails [she] sent to administration” raises a reasonable inference that she knew she was not supposed to disclose the information. (See *Marina Pacific Hotel and Suites, LLC v. Fireman's Fund Insurance Co.* (2022) 81 Cal.App.5th 96, 104 [“We assume the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded[,] and matters of which judicial notice has been taken”].) Ms. Camacho's repeated disclosures, the short timeframe within which the disclosures occurred, and her knowledge she should not have made the disclosures support a reasonable inference she knew she was improperly disclosing confidential information and intended to do so.

Ms. Camacho's argument that her "regular assignment was teaching her class which she was doing" is based on an overly myopic view of her "regular assignment" as a teacher for the District. As previously discussed, the Notice of Intent outlines numerous duties she was required and expected to perform beyond simply "teaching her class."

Refusal to Follow Proper IEP Procedures

The Notice of Intent alleges Ms. Camacho's improper use of sick leave time to administer testing to a student to determine eligibility for special education. She did so because she failed to test him when she was supposed to. She did not request prior permission to use "sick leave" for testing because she believed her request would be denied. Ms. Camacho refused to complete forms required for another special education student's assessment in a timely manner and failed to communicate with another such student's parents. Her actions considered as a whole demonstrate a deliberate choice not to follow proper IEP procedures.

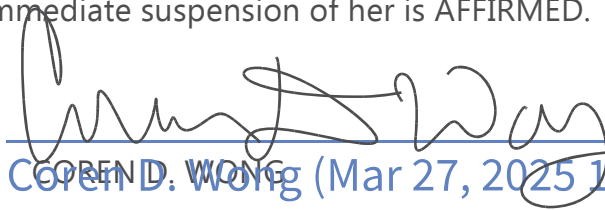
Conclusion

The Notice of Intent's allegations, and the inferences reasonably drawn from them, establish Ms. Camacho committed immoral conduct by disclosing confidential student information; improperly treating students, parents, and colleagues; and repeatedly being dishonest when asked about her misconduct. The allegations and reasonable inferences further establish she willfully refused to perform regular assignments without reasonable cause by disclosing confidential student information and refusing to follow proper IEP procedures. Therefore, Ms. Camacho's MIRS should be denied. (See *Marina Pacific Hotel and Suites, LLC v. Fireman's Fund Insurance Co.*, supra, 81 Cal.App.5th at p. 104.)

ORDER

For the aforementioned reasons, Ms. Camacho's Motion for Immediate Reversal of Suspension is DENIED, and the District's immediate suspension of her is AFFIRMED.

DATE: March 27, 2025



Coren D. Wong (Mar 27, 2025 14:43 PDT)

Administrative Law Judge

Office of Administrative Hearings